BY ORDER OF THE COMMANDER
436TH AIRLIFT WING

DOVER AIR FORCE BASE
INSTRUCTION 31-218

23 JULY 2013
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Security

MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements AFI 31-218(I), *Motor Vehicle Traffic Supervision* and applies to all personnel assigned, attached or transiting Dover AFB and all personnel residing on or visiting Dover AFB. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the Air Force (AF) Form 847, *Recommendation for Change of Publication*; route AF Form 847s from the field through the appropriate functional's chain of command.

SUMMARY OF CHANGES

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This interim change implements new guidelines that clarify requirements for the Dover Air Force Base Motor Vehicle Traffic Supervision Instruction, Table-1, add the following reserved parking spots, Bldg. 150, Col/Gen, 1 spot, Bldg. 150, USO volunteer, 2 spots, Bldg. 722 MXO/CC 1 spot, Bldg. 722 MXO Chief/Superintendent 1 Spot. Table-2, assessment 2, failure to

comply with base entry/exit point checks 1 year driving suspension or 3 year barment. Para 4.3.2 – 4.3.3, Clarify moped operating requirements.

	1.	General:	3
	2.	Driving Privileges:	3
	3.	Motor Vehicle Supervision	8
	4.	Traffic Supervision.	9
Table	1.	Authorized Reserved Parking Signs.	17
	5.	Driving Record and the Traffic Point System	22
Table	2.	Suspension/Revocation of Driving Privileges.	23
	6.	Impounding and Towing Privately Owned Vehicles	24
	7.	Troop Movements.	25
	8.	Bicycles	25
	9.	Traffic Signs and Markings	26
	10.	Pedestrian Traffic	26
	11.	Skateboards, Roller-Skates, Roller-Blades and Other Non-Motorized Modes of Transportation	27
	12.	Miscellaneous	27
Attachment 1— GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION			**29**
Attachment 2— DEFINITIONS			**32**

1. General:

1.1. This instruction applies to any person operating a motor vehicle on any road under Dover AFB jurisdiction. Additionally, certain provisions of this instruction apply to pedestrian and individuals operating non-motor vehicles as outlined in **chapters 7** through 12. Furthermore, provisions of this instruction as noted below shall also apply to the operation of Government Motor Vehicles (GMV) regardless of geographic location.

1.2. Delegation of Authority. Authority under this instruction is delegated to the 436th Mission Support Group Commander (436 MSG/CC) and Deputy Commander (436 MSG/CD). This includes the authority to suspend and revoke driving privileges.

1.2.1. The 436 MSG/CD is also designated as the DD Form 1408, Armed Forces Traffic Ticket, rebuttal authority.

1.3. Unit commanders are responsible for:

1.3.1. Placing this instruction in a location accessible to all personnel and periodically ensuring all personnel are aware this code governs all vehicles and pedestrians on Dover AFB.

1.3.2. Ensuring personnel departing Dover AFB due to Permanent Change of Station (PCS), retirement, or separation comply with section 2.4.6.1 before out-processing.

2. Driving Privileges:

2.1. Requirements for Driving.

2.1.1. Base contractors must produce an AF Form 75, Visitor/Vehicle Pass, or computer generated contractor badge. International driver's licenses will be honored for a period of 30 days after arriving in Delaware.

2.1.2. Rental vehicles for TDY personnel are not required to obtain additional insurance, insurance is covered in military contracts. Proof of insurance consists of an insurance card or other documents issued by the insurance company that has a policy effective date and an expiration date. Vehicle drivers not in possession of these required documents will not operate motor vehicles on Dover AFB. If a vehicle operator is detained on base due to a violation of this section, it will be the operator's responsibility to correct the problem before being allowed to operate the vehicle on base. If the vehicle operator cannot correct the problem immediately, the vehicle must be parked in an area where it does not interfere with traffic flow and removed as soon as possible. Abandoned vehicle procedures will be initiated for vehicles exceeding 72 hours without registration. The vehicle will be towed immediately if it causes traffic/parking problems. If the vehicle registration is expired for more than three months, it may be towed. Operators of a GMV are exempt from registration and insurance requirements. Personnel operating a GMV over 14,000 pounds gross vehicle weight (GVW) must be in possession of AF Form 2293 for the type of vehicle being operated (IAW AFI 24-301, para 8.4.1.3).

2.2. Stopping and Inspecting Personnel or Vehicles:

2.2.1. GMVs may be stopped by law enforcement personnel for all lawful and administrative reasons allowed by this instruction to include installation entry/exit point inspections, 100% vehicle inspections, etc.

2.2.2. Individuals operating a GMV assigned to Dover AFB may not refuse installation entry/exit point inspections or restricted area inspections.

2.3. Implied Consent:

2.3.1. Implied Consent to Impoundment:

2.3.1.1. Whenever a vehicle is involved in a traffic infraction or criminal activity and cannot be safely moved from the roadway, the driver is deemed to have given consent for removal/impoundment as well.

2.3.1.2. If a person fails to meet or refuses such obligations, privilege to operate or register a motor vehicle on Dover AFB may be revoked for a period of one year.

2.3.1.3. Determination of the existence of these conditions for the purpose of towing or impounding a vehicle is delegated to the on duty security forces flight sergeant or higher authority.

2.3.1.4. 436 SFS/S2I may have a vehicle impounded if the vehicle is believed to have been involved in the commission of a crime, contains evidence or contraband.

2.4. Suspension or Revocation of Driving or Privately Owned Vehicle Registration Privileges:

2.4.1. All persons operating a vehicle on Dover AFB are subject to receiving a preliminary suspension for suspected Drunk Driving/Driving under the Influence (DUI). Failure to submit to a blood alcohol chemical test or in order to preserve public safety and good order and discipline.

2.4.1.1. Immediate suspension is only authorized for non–DoD affiliated civilians if the incident occurs on base.

2.4.1.2. The preservation of public safety and good order and discipline is defined as any driver behavior that jeopardizes the safety or well-being of any person on Dover AFB. This provision should only be used for significant traffic infractions (e.g. drag racing, car surfing, pulling a skater or bicyclist behind a vehicle, etc.) as determined by the 436 MSG/CC or CD.

2.4.1.3. Preliminary suspensions/revocations for this purpose will not be for less than one year unless the violator's commander action or magistrate disposition reveals dismissal of charges or acquittal.

2.4.1.3.1. A letter addressing this matter will be issued by Security Forces at the discretion of the 436 MSG/CC or CD. Preliminary suspensions for DUI or refusal of Implied Consent will take effect immediately upon receipt.

2.4.2. Military personnel and DoD civilians whose state driving privileges are suspended or revoked for any reason must notify the 436 SFS/CC, in writing, as soon as the suspension or revocation becomes effective.

2.4.3. Security Forces, with the approval of the 436 MSG/CC or CD, will issue a presigned preliminary driving suspension letter ordering the subject not to operate a vehicle on Dover AFB pending official notification of driving revocation, prior to the subject's release from police custody. For intoxicated driving incidents occurring off base, the subject will report to the Base Defense Operations Center (BDOC) with a supervisor or first sergeant the beginning of the next day, regardless of duty status, to receive a preliminary suspension. The 436 SFS/S5R will staff the appropriate revocation letter package to the 436 MSG/CC or CD and issue the letter to the offender when signed.

2.4.4. Unit commanders may suspend driving privileges of military personnel assigned to their units for up to 30-days for traffic/vehicle safety violations. Suspensions must be coordinated through the Base Legal Office (436 AW/JA) and approved by the 436 MSG/CD or higher authority in advance. Once approved, an email message will be sent to 436 SFS/S5R providing the subject's name, initiation date and termination date and provided a copy of the suspension letter and supporting documents. Violations that require a 30-day driving suspension will be referred to the unit commander for action.

2.4.5. The 436 SFS/S5R will forward revocation, suspension, and driving records of individuals permanently changing station from Dover AFB to the gaining installation's Reports and Analysis section.

2.4.5.1. All personnel assigned to Dover AFB will out-process through vMPF and Reports and Analysis. The Security Forces Management Information System (SFMIS) will be updated and driving records forwarded to gaining installations. Units not utilizing SFMIS will be sent a hard copy of the individual's orders and driving record, to include dependents, via certified mail.

2.4.6. Whenever multiple suspensions or revocations are imposed, they will be executed concurrently.

2.4.7. Military personnel will be notified in-person or by certified mail when a family member's on-base driving privileges are suspended or revoked. The military sponsor(s) will be responsible for enforcing the suspension or revocation, and for returning an endorsed copy to 436 SFS/S5R. In the event it is not returned, the certified mail receipt will serve as proof of receipt.

2.4.8. Base driving privileges may be suspended/revoked for any serious moving violation and/or for anyone who continually violates parking standards, or habitually violates other standards considered non-moving in nature. A non-moving violation is defined as a violation that does not apply to the physical operation of a motor vehicle (e.g. parking violations, failure to maintain current registration, defective vehicle equipment, failure to wear seatbelt). Suspension durations are outlined in Table 5.1 of AFI 31-218(I) and Table 2 of this instruction.

2.4.9. Suspension of GMV Driving Privileges. Upon full reinstatement of on-base driving privileges for POV, full GMV driving privileges will be restored (including re-issue of AF Form 2293, U.S. Air Force Motor Vehicle Operator Identification Card) unless specifically withheld by competent authority, i.e., individual's commander or group commander. Only the 436 MSG/CD or higher authority may reinstate privileges prior to the end of the suspension/ revocation period.

2.4.9.1. IAW AFI 24-301, para 8.13.1, Security Forces will notify the Operator Record and License (ORL) office when individuals have their driving privileges suspended or revoked. No reinstatement notification will be made IAW para 2.11 of this instruction.

2.4.10. Revocations issued at other DoD installations will remain intact during TDY, PCS or other temporary or permanent relocations to Dover AFB. Newly assigned personnel with an active revocation are required to advise his or her squadron commander and 436 SFS/S5R at 677-6082 within 24 hours of arrival for inclusion on the SRBW (suspension, revocation, barred and warrant) roster. If the suspension is for other than an intoxicated driving incident or points accumulation, driving suspensions from other installations will be staffed to the 436 MSG/CD on a case-by-case basis to determine if the suspension will be continued on Dover AFB. Personnel arriving with an active suspension must also make notifications to his/her commander and 436 SFS within 24 hours of arrival.

2.4.10.1. All preliminary driving suspensions for offenses in para 2.4.1 will automatically become revocations, without further notice to the violator, upon the finding of guilt or any other finding not equivalent to a dismissal or acquittal.

2.4.11. All suspensions and revocations will be entered into the SFMIS SRBW Roster as soon as the signed letter is received from the 436 MSG/CC or CD.

2.4.12. Any person receiving a suspension or revocation has the right to an appeal or request reconsideration. Such requests must be forwarded through the 436 SFS/CC to the 436 MSG/CC or CD within 14 days from the date the individual is notified of the suspension or revocation resulting from the administrative hearing. If already imposed or for DUIs or refusal of Implied Consent, the suspension or revocation will remain in effect pending final ruling on the request. Otherwise, the suspension or revocation will not be imposed until such time as directed by AFI 31-218(I), para 2-6b.

2.5. Remedial driver training programs:

2.5.1. Unit commanders may consider requiring a suspended or revoked driver complete the 436 AW/SE driver improvement course prior to reinstatement of driving privileges.

2.5.2. If a commander makes the driver improvement course a condition of reinstatement, it is recommended 436 SFS/S5R be advised to insure compliance prior to reinstatement. Proof of course completion will be a copy of the course certificate.

2.6. Administrative due process for suspensions and revocations:

2.6.1. All requests for a hearing must be made within three days of receiving written notification. If requested, a hearing will be held within 14 calendar days from the time the suspension or revocation is imposed. If, due to action by the designated authority, a hearing is not held within 14 calendar days, the suspension/revocation action will not take place until such time as the person is granted a hearing and is notified of the action of the designated authority.

2.6.2. If the offender requests the hearing be continued to a date beyond the 14-day period, the suspension or revocation will become effective immediately on receipt of notification that the request for a continuance was granted.

2.6.3. This does not apply to preliminary suspensions/revocations identified in 2.4.1.1 through 2.4.1.3. In these cases, the suspension takes place immediately upon receipt of the preliminary suspension letter.

2.6.4. Requests for a hearing will be submitted to the 436 SFS/S5R and forwarded to the 436 MSG/CC or CD with all supporting documents.

2.6.4.1. The scope of the hearing for intoxicated driving incidents is limited exclusively to determine if the subject will be permitted limited driving privileges on Dover AFB and if the action is taken without prejudice.

2.7. A copy of all incident reports involving military and DoD civilian subjects will be forwarded to the Alcohol/Drug Abuse Prevention Treatment Program (ADAPT).

2.7.1. Respective unit commanders will refer all military personnel apprehended for DUI (on or off-base) or any alcohol or drug-related driving offense to the Substance Abuse Office (436 MDOS/SGOH) for an alcohol assessment, treatment and/or rehabilitation. If treatment is deemed necessary, driving privileges will not be reinstated unless the prescribed treatment program is successfully completed. A letter signed by the individual's unit commander or Substance Abuse Office prior to reinstatement.

2.7.2. The ADAPT Program Manager will notify Security Forces whenever competent medical authority has recommended an individual be medically disqualified from driving, or has been identified as a problem drinker or drug abuser to the extent which renders him or her incapable of safely operating a motor vehicle. The 436 MSG/CC or CD will consider these individuals for suspension or revocation on a case-by-case basis. If an immediate suspension is deemed necessary, a preliminary suspension letter will be issued IAW para 2.4.1 of this instruction.

2.8. Restoration of driving privileges upon acquittal of intoxicated driving:

2.8.1. Reinstatement of driving privileges will be automatic once 436 SFS/S5R receives proof the charges were dismissed or the offender was acquitted. It is the suspended driver's responsibility to obtain and supply proof.

2.8.2. All other judicial or administrative actions not resulting in an acquittal or dismissal, including entry into Delaware's First Term Offender's Program, an equivalent program in another state, or plea agreement, etc., will not result in restoration of driving privileges.

2.9. Restricted driving privileges or probation:

2.9.1. All requests to modify or vacate driving suspensions or revocations will be submitted to the 436 MSG/CD through the 436 SFS/S5R and must be endorsed by the suspended/revoked subject's squadron commander. Letters received without commander's endorsements will be returned to the unit of origin and will not be processed.

2.9.2. Requests must contain specific reasons for the request as outlined in AFI 31-218(I), para d (e.g., mission requirements, unusual personal or family hardships), and specific details of the requested driving restriction (e.g., to and from work, to and from the hospital). Additionally, the requester's squadron commander must endorse the letter recommending approval.

2.9.2.1. When an individual is authorized restricted or limited driving privileges (POV or GMV), the individual will keep a copy of the limitation letter with him or her or in the vehicle while operating it. This letter must be produced upon request by Security Forces personnel, 436 AW/SE, Airfield Operations and/or members of the individual's chain of command.

2.9.2.2. Persons found to be in violation of restricted driving privileges are subject to revocation action. For good cause, the 436 MSG/CC or CD may withdraw the restricted privilege and continue the suspension or revocation period.

2.10. Extensions of suspensions and revocations:

2.10.1. All extensions of suspensions or revocations will be served concurrently with the original suspension or revocation. However, the following actions will be taken for personnel found to be driving while suspended or revoked.

2.10.1.1. If the violator's state driver's license is suspended or revoked, the violator will be cited via DD Form 1408 or CVB Form 1805 as appropriate. The violator will also be subject to a two-year revocation of base driving privileges regardless of military affiliation.

2.10.1.2. If the violator is found to be driving and is on the Suspension Revocation Barment and Warrant Roster, the violator will be subject to administrative or judicial action in addition to an extension of suspension or revocation period. Military members on active duty will be apprehended for violating Article 92, UCMJ, Failure to Obey Order or Regulation. All other violators will be issued a CVB Form 1805 for Driving while Suspended or Revoked (if appropriate) and could be subject to a one-year barment action for refusing to comply with the original suspension/revocation order.

2.11. Reinstatement of driving privileges. Restoration of base driving privileges is automatic once the suspension or revocation time period has lapsed provided the individual's state driver's license is valid.

3. Motor Vehicle Supervision

3.1. Go-carts, mini-bikes, dirt bikes, stock cars, ATVs, gators, mules, golf carts, and segways, etc. will not be operated on the base or in family housing. These vehicles may only be towed or hauled on base. Scooters may be operated on base provided they meet state and base registration requirements. **Exception:** This prohibition does not apply to Government Motor Vehicles/Government equipment of these types or golf carts used during special base sponsored events.

3.2. State Driver's License and State Vehicle Registration:

3.2.1. Registration plates will be properly displayed and secured in a horizontal position to the vehicle to which it is issued and will be maintained in a manner to be clearly seen.

3.2.2. Personnel with an expired vehicle registration will be cited. Personnel operating a vehicle with a suspended, canceled or revoked registration will be cited, the vehicle towed and the vehicle operator's base driving privileges may be revoked for one year.

3.3. Unlawful Use of Driver's License or USAF/State Registration.

3.3.1. It is unlawful for any person to:

3.3.1.1. Display, permit to be displayed, or have in their possession any canceled, revoked, suspended, fictitious, or fraudulently altered vehicle registration, driver's license, base decal, visitor/vehicle pass, badge, temporary permit, and/or state license plate.

3.3.1.2. Lend their vehicle registration, driver's license, base decal, visitor/vehicle pass, badge, temporary permit, and/or state license plate to any individual, or knowingly permit the use by another.

3.3.1.3. Display or use a permanent vehicle registration, driver's license, base decal, visitor/vehicle pass, badge, temporary permit, and/or state license plate not issued to them.

4. Traffic Supervision.

4.1. Hand-Held Electronic Devices.

4.1.1. DoDI 6055.4 contains rules regarding use of hand-held electronic devices while operating motor vehicles.

4.1.1.1. Exception: Government owned/contracted cell phones with a walkie-talkie function may be used in the walkie-talkie mode without a hands free device.

4.1.1.2. A hands-free device is defined as any device that has both a speaker and a microphone to allow cell phone users to use their cell phone while driving, requiring the use of hands to operate the device.

4.1.2. For a first offense the following applies. Military violators will continue to receive a DD Form 1408 and be assessed three points for any of these violations. However, civilian violators will be issued a CVB Form 1805 with a collateral forfeiture of $25 plus the $25 administrative fee. Civilian violators will also be assessed three traffic points. Any subsequent electronic device violation in one year will result in the same actions above, as well as a six-month suspension of driving privileges.

4.1.3. Laptop computers will not be used by vehicle operators in GMVs while the vehicle is in motion as laptop use can be a distraction, and screen glare can obstruct the driver’s field of vision. Exception: GMV’s in official performance of duties (law enforcement, maintenance, EOD, etc).

4.2. Whenever a vehicle is impounded or towed on Dover AFB, an inventory of the vehicle and its contents will be conducted with all items documented via DD Form 2506, Vehicle Impoundment Report. Procedures for towing, searching, impounding of vehicles are outlined in AFI 31-101, DOVERAFBSUP and AFI 31-206.

4.3. All military personnel who operate a motorcycle (on-off duty, on-off a DoD installation) are required to attend, or to have attended, an approved motorcycle rider safety course. Motorcycle riders on Dover AFB will comply with the training requirements established in AFI 91-207, para 4.5. Additionally, anyone operating a motorcycle, moped, ATV or three-wheeled vehicle on Dover AFB will comply with the safety and equipment standards established in AFI 91-207, para 3.5.

4.3.1. Civilian employees who are members of the collective bargaining unit may wear motorcycle gloves that are not full fingered or mittens. They are authorized to wear sturdy footwear that is not over the ankle. They are also authorized to wear a brightly colored or contrasting outer garment during the day and reflective during the night. The outer upper garment may be short sleeved. Other than the exceptions previously listed, bargaining unit employees must follow all other personal protective requirements.

4.3.2. All motorcycles and scooters will meet the criteria for inspection and registration before operating within the confines of Dover AFB. Each operator must possess, at the time of operation, a current state authorized motorcycle driver's license, proof of ownership, proof of current insurance coverage, and proof of completion of a rider skill-training course that meets the requirements of the Motorcycle Safety Foundation. Exception: Civilian employees or visitors are not required to complete a motorcycle safety course.

4.3.3. Moped operators will observe all laws applicable to other motor vehicles, with the exception that the maximum speed for mopeds is 25 mph. Only operators may ride mopeds--no passengers. IAW DE Title 21, chap 41, (Rules of The Road), Mopeds and tripeds. A moped operator does not need to possess an endorsement for a motorcycle on their driver's license, they just need a valid state driver's license. No safety inspection is required. The moped must be registered and have a registration plate. A moped is considered to have an engine no larger than 49CC. Anything above 49CC is considered a scooter or motorcycle and the operator must meet those requirements.

4.3.3.1. All mopeds are required to be equipped with operational headlights, taillights, and a horn.

4.3.4. DELETED

4.3.5. DELETED

4.3.6. DELETED

4.3.6.1. DELETED

4.4. Operation of a motor vehicle shall be in accordance with the motor vehicle laws of the State of Delaware and Federal Code unless otherwise noted in this instruction.

4.4.1. All references to any law enforcement officer within the Delaware Code shall apply to Security Forces or personnel assigned to 436 SFS performing police duties.

4.4.2. Violations of this code are punishable under the Uniform Code of Military Justice, Article 92, Failure to Obey Order or Regulation; and Title 18, United States Code (USC), Section 13; and may result in suspension or revocation of installation driving privileges IAW AFI 31-218(I), Table 5.1 and Table 2 of this Instruction.

4.5. Traffic Law Obedience:

4.5.1. No person shall willfully refuse to comply with any lawful order or directive of anyone who has the authority to direct, control, or regulate traffic (e.g., Security Force patrolman in the performance of official duties, others as defined in para 4.4.1).

4.5.2. The operator of any vehicle or bicycle will obey all traffic control devices unless otherwise directed by a Security Forces patrolman in the performance of official duties.

4.5.3. Drivers of authorized emergency vehicles, while responding to an emergency may:

4.5.3.1. Park or stand irrespective to the provisions of this instruction, providing the vehicle is parked or standing as a result of emergency response and it does not create a safety hazard.

4.5.3.2. Proceed past a red or stop signal, but only after assuring the intersection is free of traffic and there is no danger to life or property.

4.5.3.3. Disregard instructions governing direction of movement or turning in a specified direction if other traffic is not endangered.

4.5.3.4. Note: The exemptions granted to authorized emergency vehicles shall apply only when the operator of the vehicle, while in motion, displays at least one red or blue lighted lamp, multicolor or appropriate light bars. The provisions of this section shall not relieve the operator of the emergency vehicle from the duty to drive with regard for the safety of all nor shall it protect the operator from the consequences of their reckless disregard for the safety of others. Emergency vehicles will not disregard any traffic control device when responding to exercise situations.

4.6. Off-road vehicles usage: Privately owned off-road vehicles (ORV) are only authorized to be operated on the installation streets if they are licensed and registered to drive on state roads. All other ORV operations are prohibited. Government ORVs are excluded from this prohibition.

4.7. Traffic Enforcement:

4.7.1. Security Forces have the primary responsibility for enforcing traffic laws on Dover AFB. Violators will be cited as follows:

4.7.1.1. All civilians operating POVs, to include dependents, DoD and NAF employees, will be issued a CVB Form 1805, in exclusive federal jurisdiction areas. Within areas of proprietary interest, and for base violations not considered a violation of state or federal law, violators will be cited via DD Form 1408.

4.7.1.2. Civilians, who are operating a GMV at the time of the violation, will be issued a DD Form 1408, regardless of the jurisdiction in the area of the offense.

4.7.1.3. Active duty personnel will be issued DD Form 1408.

4.7.1.4. Reserve military personnel will be issued a DD Form 1408 while in status or on active duty orders. A CVB Form 1805 will be issued at all other times.

4.7.1.5. Juveniles who commit traffic infractions will only be cited on DD Forms 1408. Criminal offenses will be documented on Security Forces Information Management System (SFMIS).

4.7.1.5.1. The citing patrolperson will contact the juvenile's sponsor and advise them of the issuance of a citation.

4.8. Dover AFB Rules of the Road:

4.8.1. Vehicles approaching school buses stopped for the purpose of receiving or discharging passengers, will stop before reaching the bus and will not proceed until the bus resumes motion. Violators may have their driving privileges suspended for 90 days.

4.8.2. The driver of a GMV will not back a vehicle without a spotter unless the movement can be made with reasonable safety and without interfering with other traffic. Drivers of GMVs of one-ton capacity or more will use a spotter at all times when backing.

4.8.3. No person will be transported in or on a vehicle while in a standing position, except vehicles configured for this operation where handholds are provided. No person will be transported in the cargo compartment of a vehicle. Exception: Squadron commanders may waive this requirement if mission or contingency requirements necessitate that personnel must ride in the cargo area. A written letter must be submitted to 436th Airlift Wing Safety Office (436 AW/SE) stating the reason behind the decision and specify controls that will be used to protect passengers after utilizing the Operational Risk Management Process, and conform with AFI 91-207, DOVERSUP, The U.S. Air Force Traffic Safety Program.

4.8.4. Driving over unpaved areas is prohibited except when it is absolutely necessary to avoid obstructions or when directed by Security Forces in the performance of official duties.

4.8.5. Vehicle operators are responsible for the proper wear of required safety devices by all passengers in that vehicle. Violations of seatbelt or helmet requirements will be enforced as follows:

4.8.5.1. Any vehicle attempting to enter the base while the operator or any passenger is not wearing the required safety device will be stopped and denied entry until the seatbelt or helmet is worn.

4.8.5.2. Any vehicle operator not wearing the required safety device(s), or allowing personnel in their vehicle to not wear the required safety device(s), will be issued a citation for the first offense. A second offense within a one-year period will result in the operator's base driving privilege being suspended for a period of 30 days; additional violations may result in revocation of base driving privileges.

4.8.6. No person shall operate a vehicle or bicycle while wearing a Walkman or similar headset device.

4.8.7. Vehicles entering the installation entry control points during the hours of darkness will dim their headlights prior to approaching (vehicles with day time running lights are exempt).

4.8.8. When vehicle operators do not provide proof of insurance, registration or a driver's license, the following applies. Violators authorized to receive a CVB Form 1805 will be cited for violating the applicable section of Title 21, Delaware Code, and the vehicle will be removed from the installation until proper insurance documentation, driver's license, or proof of vehicle registration is obtained.

4.8.8.1. Whenever a civilian violator is issued a CVB Form 1805 for failing to provide proof of insurance or registration or fails to provide a valid driver's license, the patrolman will advise the violator of the following compliance citation procedures:

4.8.8.1.1. The driver may have the ticket voided if proof is provided to 436 AW/JA showing the documents were valid at the time of the violation. This must be done within five days from receiving the ticket. This may be accomplished by contacting Magistrate Court Clerk, 436 AW/JA, at 677-3300.

4.8.8.1.2. All voiding requirements will be conducted by 436 AW/JA.

4.8.8.2. Violators authorized to receive a DD Form 1408 will be cited for violating this instruction and the vehicle will be removed from the installation until proper insurance documentation, driver's license, or proof of vehicle registration is obtained. Note: An individual cited for failure to provide proof of insurance must provide proof to 436 SFS/S5R that the vehicle was insured at the time the citation was issued. If the vehicle was not insured, the vehicle operator/owner may be subject to a one-year revocation of driving privileges.

4.8.9. On this installation, it is unlawful for any person to have an open container of an alcoholic beverage in his/her possession in a motor vehicle or while astride a bicycle.

4.8.10. Unsafe Vehicles:

4.8.10.1. Vehicles cited as being unsafe may not be driven on the installation, but will be towed to a place of repair.

4.8.10.2. Violations for unsafe vehicles may be cited via DD Form 1408 as Compliance Citations at the patrolman's discretion.

4.8.10.3. Proof of repair must be presented to the BDOC, Building 910, within 72 hours of the issuance of the compliance citation.

4.8.10.4. Failure to comply with this section may result in removal of the vehicle from the installation.

4.8.11. Speed Limits:

4.8.11.1. General Speed Instructions: No person shall operate a motor vehicle on any roadway at a speed greater than reasonable and prudent under existing conditions and having regard for the actual and potential hazards that may exist.

4.8.11.2. Specific Speed Limits. The base speed limit is 25 miles per hour (mph) unless otherwise posted. No person shall drive a motor vehicle in excess of the following:

4.8.11.2.1. 15 mph in the Industrial Maintenance Complex (IMC), base supply, and air terminal complexes. The IMC refers to those roads east of Atlantic Street and west of the ramp.

4.8.11.2.2. 10 mph in all school zones. (When children are present)

4.8.11.2.3. 10 mph in parking lots and on access roads.

4.8.11.2.4. 5 mph while backing.

4.8.11.2.5. 35 mph on all paved portions of the base perimeter road, south of Building #100.

4.8.11.2.6. 10 mph when passing a formation marching on the roadway.

4.8.11.2.7. 20 mph in the Family Housing (FH) areas.

4.8.11.2.8. Speed limits on the airfield will be IAW Dover Air Force Base Instruction 13-202, Airfield Driver Training and Operating Procedures.

4.8.11.2.9. 5 mph in FH parking lots.

4.8.11.2.10. 30 mph on Atlantic Street.

4.8.12. Littering from a Vehicle.

4.8.12.1. Littering is defined in Title 16 of the Delaware Code (Litter Control Law) and includes "all rubbish, waste material, refuse, cans, bottles, garbage, trash, debris, dead animals or other discarded materials of every kind and description."

4.8.12.2. Littering is prohibited on Dover AFB and in FH. Vehicles/trucks carrying large amounts of debris or garbage will cover the material to prevent it from being blown or falling out.

4.8.12.2.1. Civilian personnel committing violations in exclusive federal jurisdiction areas will be cited via CVB Form 1805 for violation of Title 16 (Del Code) Sec 1606.

4.8.12.2.2. Civilian personnel committing violations in proprietary jurisdiction will be cited via DD Form 1408. Personnel cited via DD Form 1408 will be assessed two points for each violation.

4.8.12.2.2.1. In addition, personnel accumulating a total of three littering violations within a 90-day period may receive a 30-day driving suspension.

4.9. Aiding and Abetting the crime of Driving Under the Influence (DUI).

4.9.1. Any person who assists, encourages, advises, instigates, counsels, or commands another person to drive a motor vehicle while the operator is intoxicated, shall be guilty of the crime as a perpetrator, and their base driving privileges shall be revoked IAW AFI 31-218(I) and this instruction. This includes any person in control of a motor vehicle (owner/user) who knowingly allows an impaired or intoxicated person to operate that vehicle.

4.10. Operation of RADAR/LIDAR units:

4.10.1. On Dover AFB, it is required that the RADAR/LIDAR operator be in a visible location to encourage voluntary compliance with speed limits and other traffic laws.

4.10.2. RADAR/LIDAR units will only be used in Security Forces vehicles. When available, clearly marked Security Forces vehicles will be used.

4.10.3. Parking lights will be on while running stationary RADAR/LIDAR if parked within five feet of the roadway.

4.11. Accident Reporting:

4.11.1. Any driver involved in an accident must immediately stop their vehicle, as soon as safely possible, and remain at the scene of the accident until they have fulfilled the requirements of this section.

4.11.1.1. Duty to render competent first aid and give information: anyone involved in an accident will ensure first aid is rendered as necessary until appropriate medical attention arrives. The operators of vehicles involved will exchange their name, grade, organization, address, telephone number, insurance information, driver's license number, and vehicle registration information.

4.11.1.2. Accidents involving damages to unattended vehicles or other property: any vehicle that collides with an unattended vehicle or property will stop immediately and the driver will attempt to locate and notify the owner of the damaged vehicle or property and comply with the paragraph above.

4.11.1.2.1. If unable to contact the owner, the operator will notify Security Forces immediately.

4.11.1.3. Accident reporting: the operator of any vehicle involved in an accident on base will immediately report the accident to the Security Forces. If the operator is incapable of reporting the accident, attempt to have a passenger or witness report the accident immediately. Security Forces personnel will respond to all major accidents. (Definitions in attachment 2).

4.11.1.4. Moving a vehicle from the scene of an accident: any person involved in an accident on-base will not move the vehicle from the scene without permission from Security Forces or Delaware State Police (DSP) unless safety concerns require immediate action.

4.11.2. Security Forces or DSP are responsible for the investigation of all accidents requiring investigation. This investigation will be in accordance with Air Force and local directives.

4.11.3. Special Purpose Vehicles and Vehicles Classified as Equipment (e.g. k-loader, forklift, mule, ATV, snowplow, etc.) If a special purpose vehicle or vehicular equipment item is involved in a mishap, the following applies:

4.11.3.1. If a vehicle is performing duties for which it was designed and not being operated as a mode of transportation (e.g. moving cargo pallets in an industrial area, uploading cargo, etc.), and the vehicle strikes an object other than another motor vehicle, it will be considered a ground mishap and not an accident. This does not apply to special purpose vehicles operated as motor vehicles (e.g. HMMWV, tractor trailer, LMTV, Cut V, etc.).

4.11.3.1.1. Notification should be made to the BDOC, Fire Department, and Safety as applicable, however a police response in not required.

4.11.3.1.2. All subsequent notifications will be the responsibility of the vehicle owner/user. Additional investigation requirements will also be accomplished by the owner/user via a Report of Survey.

4.11.3.2. If the special purpose vehicle is being used as a mode of transportation or the object struck is another vehicle (e.g. parked car, GMV, etc.), the incident will be considered an accident and must be reported to the BDOC.

4.11.4. Police responses to minor accidents will be at the discretion of the on-duty Security Forces flight sergeant based on patrol availability.

4.12. Reserved Parking on Dover AFB:

4.12.1. 436 SFS will not enforce reserved or unauthorized parking with the exception of handicapped parking, unless approved by the on-duty Flight Sergeant or higher authority. AFMAN 31-201, Vol. 7 authorizes the use of parking wardens, designated by unit commanders, to enforce unit owned or housing reserved parking areas, or other parking violations within their area of responsibility. A DD Form 1408 over-stamped with "Parking Warden Ticket" will be utilized to cite parking violations. Completed tickets will be forwarded to 436 SFS/S5R. Whenever the same vehicle or operator has received three citations for violating standing, parking, or any other non-moving vehicle instructions within a 90 day period, or an individual is found to have parked in a handicapped slot without being authorized, the driving privileges of the vehicle owner or operator may be suspended for 30 days. Multiple non-moving citations issued at the same time will count as one violation for the purpose of the 30-day driving suspension. The violator has 14 calendar days duty days, to rebut the suspension of driving privileges. The suspension for reserve personnel is 30 days including weekends and holidays.

4.12.1.1. Each unit will be responsible for enforcing parking violations in areas under their control. The unit commander will designate a parking warden using the web-based Appointment Letter Management Tool. The respective warden will contact 436 SFS/S5R for training prior to issuing citations. Under no circumstance will parking wardens attempt to enforce any traffic laws other than parking violations. A parking warden's authority is strictly limited to the parking areas for which the unit is responsible. Parking wardens will contact the BDOC at 677-6664 for assistance should any problems or complaints arise due to parking enforcement activities.

4.12.2. Erection of reserved parking signs is not automatic; it is the responsibility of each squadron, group, or wing staff agency to request the signs they require. Submit requests on AF Form 332, Base Civil Engineer Work Request, by the facility manager. Submit requests to the 436th Civil Engineer Squadron for approval. All signs will meet standards set forth in Unified Facilities Criteria (UFC) 3-120-01, Air Force Sign Standard. Reserved parking signs are limited to those identified in Table 1 as approved by 436 CES.

Table 1. Authorized Reserved Parking Signs.

Wing Commander	XXX AW/CC
Vice Wing Commander	XXX AW/CV
Command Chief	XXX AW/CCC
Group Commanders	XXX/CC
Deputy Group Commanders	XXX/CD
Group Superintendents	XXX/CCC
Wing/Group Executive Officers	XXX/CCE
Inspector General	XXX/IG
Wing Staff Elements	XXX/CCS, XXX/SE, XXX/PA, XXX/XP, XXX/FM, XXX/SJA, XXX/DSJA, XXX/AT, XXX/CX, XXXCP
AF Legal Services Agency	AFLSA/ADC
Squadron Commanders	XXX/CC
Squadron Chief	XXX/CEM
MXO/CC	Bldg 722(1)
MXO Chief/Superintendent	Bldg 722(1)
First Sergeants	XXX/ CCF
Squadron Civilian Deputy	XXX/CD (SVS/CES only authorized civilian deputy positions)
Ten or Twenty Minute	10/20 Minute Parking (Commissary, BX, CDC)
Honor Guard	HONOR GUARD (Facility 205, BX, Club)
Customers	CUSTOMER
Handicapped	HANDICAPPED
Chaplain	CHAPLAIN
Government Vehicle	GMV VEHICLE
Annual/Quarterly Award Winner	ANNUAL/QTRLY WINNER (Club)
Colonel/General	COL/GEN (Bldg 201(1), Club(1), BX (3), and Fitness Center (1)
Chief Master Sergeants	CMSGT (Bldg 201(1), Club(3), BX(3), and Fitness Center (1)
Squadron Commanders/First Sgt	SQDN CMDR/FIRST SGT (Club and BX (3)
Commissary	Store Officer, Deputy Store Officer
Expectant/New Mothers	EXPECTANT/NEW MOTHERS (Commissary / BX / Clinic)
USO Volunteer	Bldg 150(2)

4.12.2.1. Union reserved parking signs will be in accordance with the applicable negotiated agreement in the union contract.

4.12.2.2. Handicapped parking is regulated under the uniform federal accessibility standards.

4.12.2.2.1. Handicap parking placards and stickers are issued to individuals, while handicapped license plates are issued to vehicles. When a vehicle parks in a reserved handicapped parking spot, one of these forms of identification must be displayed in plain view. If displaying a placard or sticker while parking in a reserved handicapped spot, the individual to whom the placard or sticker was issued must be present.

4.12.3. Security Forces and fire department units performing official duties may park in any reserved parking areas, with the exception of handicapped spaces, during emergency responses or weapon and funds escorts.

4.12.4. Parking is only authorized in clearly identified paved or graveled areas marked by paint, pipes, barriers, or signs. Parking in unpaved areas is not authorized, except during special events or as directed by the 436 MSG/CC or CD or Security Forces.

4.12.4.1. Parking in an area not specifically designated as a parking space (white line, sign, curb marking, etc.) will be considered a parking violation.

4.12.4.2. Personnel assigned quarters in base housing may store their boats, trailers, campers, and recreational vehicles in the RV storage lot located on the south end of the base, adjacent to FAM Camp. Applications for storage on main base are handled through 436th Force Support Squadron/SVRO, 677-3959.

4.12.5. No person will stop, stand, or park a vehicle (except when necessary to avoid a conflict with other traffic or when in compliance with the direction of a traffic control device) on any lawn, seeded area, maintained field, playground, or other area not used for motor vehicle traffic.

4.12.6. Family Housing Parking:

4.12.6.1. The driveways to each individual's quarters will be considered their assigned parking space.

4.12.6.2. Parking along the road is for visitors. However, people who have more than one POV may park along the road. Oversized recreational vehicles or converted buses will not park alongside the roadway or in the confines of the roadway. These vehicles will be parked in the areas discussed in paragraph 4.12.4. Exception: Oversized recreational vehicles or converted buses departing/returning from trips may park alongside the roadway for no longer than 24 hours.

4.12.6.3. Any individual who operates an oversized recreational vehicle or converted bus as their primary means of transportation must request permission through the Family Housing Office to park their vehicle in base housing.

4.12.6.4. Any housing resident cited three times for illegally parking in the housing area in a one year period may have their privilege to reside in military housing reviewed. The 436 MSG/CC or CD will be the final authority in this matter.

4.12.6.5. Moving trucks will not park on lawns in base housing.

4.12.7. DD Forms 1408 will be used to cite all parking violations with one exception. Enforcement officers authorized to issue CVB Forms 1805 may cite civilian violators using this form provided the officer has personal contact with the vehicle operator and personally observed the violation at the time the citation is issued.

4.13. Unattended Motor Vehicles.

4.13.1. No person driving or in charge of a motor vehicle shall permit it to be parked unattended without first placing it in park, stopping the engine and removing the key.

4.13.2. Vehicles will not be parked on base for more than 72-hours except as specified below. In all cases where a vehicle is to be lawfully parked more that 72-hours, the vehicle owner will comply with the following. A placard will be placed on the dashboard or in plain sight indicating the name and phone number of the vehicle owner (military include squadron and 1st Sgt name), name and phone number of person in the local area who has a key if the vehicle must be moved and inclusive dates the vehicle will be parked. See attachment 2 for an example of the placard. The vehicle must be insured and must maintain current registration for the duration of the parking time period. Failure to comply with these requirements may result in the vehicle being towed and impounded at the owner's expense.

4.13.2.1. Vehicles may be parked in specifically designated short or long term parking lots, provided they comply with owner/user requirements and posted signs.

4.13.2.2. Dormitory residents may park vehicles in dormitory parking lots or at respective squadrons, provided space is available.

4.13.2.3. All other vehicles parked in base parking lots longer than 72-hours must first obtain the permission of the responsible building custodian or commander.

4.14. Refer to Dover AFB Instruction 40-303, Child Supervision, on matters pertaining to unattended children in vehicles.

4.15. Processing Traffic Citations.

4.15.1. All DD Forms 1408 will be annotated by the patrolperson with instructions for violators to report to 436 SFS/S5R at Building 910, Room 121 within five duty days to rebut a citation. After five days from the date of issue, rebuttals will not be considered.

4.15.2. If a member desires to rebut a DD Form 1408, the violator must report to 436 SFS/S5R in the time allowed and elect rebuttal. S5R personnel will provide the violator rebuttal instructions. The violator will then have 14 calendar days from receipt of the ticket to submit a letter articulating why the ticket should not have been issued. Since the 436 MSG/CD is the designated rebuttal authority, all requests for rebuttal consideration must have the squadron commander's endorsement and comments supporting the violator's guilt or innocence. If the request is not submitted within the required 14 days or does not contain the commander's endorsement and comments, the request will not be processed and appropriate traffic points will be assessed.

4.15.3. All rebuttal requests will be conducted with the 436 MSG/CD via email. The email message will include a copy of the ticket, the violator's rebuttal letter with

endorsement, and a statement from the issuing police officer. The email message will be forwarded through the DFC for annotation or recommendation before being sent to the 436 MSG/CD.

4.15.4. The 436 MSG/CD will notify 436 SFS/S5R of his/her decision, which will be considered the final decision. S5R will notify the violator of the decision in writing via email and will courtesy copy the squadron commander/first sergeant.

4.15.4.1. If the ticket is deemed valid by the rebuttal authority, the violation will be entered into SFMIS and traffic points will be assessed.

4.15.4.2. If the ticket is deemed invalid, the ticket will be considered void.

4.15.5. Contact information for CVB Forms 1805:

4.15.5.1. The physical address for U.S. District Court is 844 N. King Street, Wilmington, DE 19801-3570. The court clerk may be reached at (302) 573-6170. This address should be filled in Box 34 of the CVB Form 1805 (see AFMAN 31-201, Vol. 3, page 136).

4.15.5.2. The address on the envelope portion of the CVB Form 1805 is also where all payments should be mailed. That address is: Central Violations Bureau, P.O. Box 70939, Charlotte, NC 28272-0939. Fines may also be paid at **http://www.cvb.uscourts.gov/**.

4.15.5.3. General correspondence, requests for information and questions should be directed to: Central Violations Bureau, P.O. Box 780549, San Antonio, TX 78278-0549. The Bureau may also be reached at (800) 827-2982 or **info@cvb.uscourts.gov**.

4.15.6. Rebutting a CVB Form 1805:

4.15.6.1. Where a disagreement exists involving an offender cited via CVB Form 1805 and Security Forces, the US Magistrate will render the final decision.

4.15.6.2. If a violator desires to rebut a lawfully issued CVB Form 1805, inform him/her the following procedures apply. The violator should check the appropriate box requesting a court hearing on the violator's copy of the citation and mail to the address on the reverse side. The violator will be notified of a court date by mail.

4.15.6.3. When a violator appears in court, he/she may contest a lawfully issued citation by entering a plea of not guilty. He/she will then be scheduled for a hearing before the Magistrate at which time evidence may be presented to contest the citation.

4.16. Security Forces personnel invoking the Implied Consent provisions will record the appropriate information on DD Form 1920, Alcohol Influence Report or locally devised form. The authorized methods for conducting a chemical test to determine blood alcohol level shall be the intoxilyzer breath analysis instrument, blood test, or both.

4.16.1. The blood alcohol concentration (BAC) threshold delineating impaired from intoxicated on Dover AFB will reflect the State of Delaware's standard of 0.08 percent.

4.16.2. When a person's BAC is determined to be 0.08 percent or higher, driving privileges will be revoked IAW section 2.4 of this instruction and AFI 31-218(I), para 2-

4. Exception: Persons under the age of 21 who drive, operate or have physical control of a vehicle who have a BAC of 0.01 percent or higher shall have their driving privileges revoked for one year.

4.16.3. If the percentage is at least 0.05 but less than 0.08, presume the person is impaired. Consider this standard with other competent evidence (e.g. pre-exit and field sobriety tests performance and behavioral cues to indicate the driver was not capable of safely operating a vehicle at the time of police contact) in determining whether the person was under the influence of alcohol. Driving while impaired will result in a six-month driving suspension.

4.16.4. Whenever the military magistrate authorizes the seizure of blood for testing, the subject will be transported to the 436th Medical Group Laboratory. Blood will be drawn and secured as evidence based on verbal authorization to search and seize. However, the blood sample will not be processed until a signed copy of the AF Form 1176 is provided to the Lab. Blood will not normally be drawn from civilians. Contact SJA for situational guidance regarding civilian blood tests.

4.16.4.1. Lab personnel will not normally draw blood by force from a combative subject due to safety issues. If a subject becomes combative or physically resistant to provide the blood sample as ordered, advise the subject he or she will be apprehended for UCMJ Article 92, Failure to Obey Order or Regulation. If the subject still does not comply, the subject's commander or first sergeant will respond to the Lab and direct the subject to submit.

4.16.4.2. The subject's first sergeant will pick up a copy of the blood test results within 24 hours of being notified it is ready by Lab personnel. The first sergeant will immediately provide a copy of the results to 436 SFS/S5R for inclusion in the case file.

4.17. Commercial Vehicles

4.17.1. Title 21, Delaware Code, Section 2613 prohibits any person from operating or being in physical control of a commercial motor vehicle with "any measurable amount of alcohol in the person's system."

4.17.2. Title 49, Code of Federal Regulations, Section 392.5(a)(3) further stipulates that commercial vehicle operators who possess alcoholic beverages or has a measurable amount of alcohol in his/her system must also be placed out of service for 24 hours.

4.17.3. If the commercial vehicle operator is placed out of service, the vehicle will be removed from the installation. If the vehicle cannot be removed by the owner/operator's company or designated authorized operator, it will be towed at the owner/operator's expense.

4.18. Off-Installation Traffic Activities: Local police agencies will be provided a list of personnel who are authorized to receive copies of reports. Information is released upon fax request or walk-in request depending on the agency. Security Forces will forward information to local police agencies upon fax or walk-in request after verifying authenticity.

4.19. Personnel will not operate a vehicle when the sound system can be heard outside the vehicle at greater than 50 feet except as required for official duties.

4.20. Emergency vehicles responding to actual emergencies will not exceed 10 MPH over the posted speed limit and must take existing road conditions into consideration. All speed and traffic laws will be obeyed by emergency vehicles responding to exercises.

5. Driving Record and the Traffic Point System

5.1. Driving Records: All suspensions and revocations will be IAW AFI 31-218(I), Table 5.1 and Table 2 of this instruction. Specific incidents deemed appropriate for suspension or revocation but not listed in Table 2 may be considered on a case-by-case basis. Suspensions and revocations apply to active duty, reserve, civil service, dependents, retirees, and non-military affiliated civilians.

Table 2. Suspension/Revocation of Driving Privileges.

NOTE: The following suspensions and revocations apply exclusively to Dover Air Force Base. **Assessment 1:** 6-month suspension to a 1-year revocation. **Violation:** Any incident deemed "serious" by the installation commander or designee, to include the preservation of good order and discipline.
Assessment 2: 1-year revocation is appropriate for the following offenses. **Violations:** **-** Operating a motor vehicle with a BAC of 0.08% or higher. - Failure to comply with base entry/exit point checks (or 3 year barment) - Failure or refusal to meet towing costs obligations. - Driving an uninsured vehicle. - Driving a vehicle with suspended or canceled registration. - Persons under the age of 21 who drive/operate or have physical control of a vehicle who have a blood alcohol concentration of or exceeding 0.01 percent.
Assessment 3: 6-month suspension is appropriate for the following offenses. **Violation:** - Accumulation of 12 traffic points in 12 months or 18 points in 24 months. - Second or subsequent electronic device violations (para 4.1) within one year. - Speeding 20 MPH over the posted speed limit or higher. - Operating a motor vehicle with a BAC above 0.05 but less than 0.08%. - Permitting the unlawful or fraudulent use of a driver's license.
Assessment 4: 90-day suspension is appropriate for the following offenses. **Violation:** Failure to stop for school bus discharging or receiving passengers.

Assessment 5: A 30 day suspension is appropriate for the following offenses. **Violation:** - Illegally parking in a reserved handicapped parking space. - Three non-moving violations in 90 days. - Two seat belt violations within a 1-year period.
- Three littering violations within 90 days. - First cell phone or electronic device violation policy in para 4.1. - Unit commander suspensions for traffic/vehicle safety violations IAW para. 2.4.4.

6. Impounding and Towing Privately Owned Vehicles

6.1. If required, a contract will be established with local wrecker companies to provide towing and impoundment services on Dover AFB.

6.2. When utilizing contracted impoundment lots, the 436 SFS/CC will ensure lots are reasonably secure and certified by 436 SFS/S2I.

6.3. Towing Vehicles.

6.3.1. On Dover AFB, vehicles may be towed for all reasons identified in AFI 31-218, para 6-3c, as well as the following:

6.3.1.1. Vehicles suspected of being abandoned will be reported to 436 SFS/S2I for disposition. S2I will arrange for towing and disposition of these vehicles.

6.3.1.2. Due to liability issues, Security Forces personnel will not operate POVs involved in the below listed offenses. The 436 SFS may have vehicles towed from street or parking lots without prior driver/owner notification for the following reasons:

6.3.1.3. Illegally parked.

6.3.1.3.1. Illegally parked in a reserved parking spot (e.g. handicap, commander, etc.) when the vehicle is not properly marked and an owner cannot reasonably be located.

6.3.1.4. The vehicle interferes with or is involved in one of the following:

6.3.1.4.1. Vehicles of drivers detained/apprehended for DUI will be towed and held for 24 hours at the owner's expense.

6.3.1.4.2. For lawful reasons at the discretion of law enforcement personnel as approved by an on duty flight sergeant or higher authority.

6.3.1.5. To prevent injury.

6.3.1.6. When a driver is operating an uninsured motor vehicle. No one will drive the vehicle any further. An uninsured POV will not be operated on-base under any circumstances.

6.3.2. Vehicle owners will be responsible for all towing and storage costs.

6.3.3. Owner-Operator Towing: Vehicles must be towed using a rigid A-frame, I-beam, or commercially designed towing strap. (I-beam and towing straps require an operator in the towed vehicle). From dusk until dawn, rear lights and turn signals on the towed vehicle will be used. All other methods of towing are prohibited.

6.4. Unattended POVs: If a vehicle is suspected of being abandoned, Security Forces will take the following actions:

6.4.1. Vehicles will be cited via DD Form 1408 and a copy of a DD Form 2504, Abandoned Vehicle Notice will be attached.

6.4.2. If the vehicle is not moved within 72 hours after issuance of DD Form 2504, or is unclaimed while in possession of the Air Force for 60 days, the vehicle will be towed. S2I will then contact the towing contractor and request they tow the vehicle, provide storage, and security at the registered owner's expense.

6.4.3. A vehicle is considered abandoned 60 days after making reasonable good faith efforts to contact the owner or when the owner is contacted and fails to take appropriate steps to assume responsibility for the vehicle.

6.4.3.1. Vehicles that do not have proper registration and mounted plates will be considered abandoned and may be towed at the owner's expense.

6.4.3.2. Any vehicle deemed inoperative, parked with flat tires, broken windows, or extensive physical damage will be considered abandoned.

7. Troop Movements.

7.1. Troop movements or formations will use the extreme right side of the roadway.

7.2. Road guards (wearing a reflective vest/belt or carrying a traffic wand) will be utilized while crossing all intersections.

7.3. During periods of reduced visibility, the troop commander will designate additional personnel to wear a reflective vest/belt or carry a traffic wand.

7.4. There will be a minimum of four (4) personnel with safety devices within the formation. These individuals should be placed in the front and rear of the formation.

7.5. All vehicle traffic will yield to troop formations. Passing is permitted at the discretion of the troop commander. Vehicles passing troop movements will not exceed 10 MPH.

8. Bicycles

8.1. Everyone operating a bicycle on a roadway will be granted all the rights of a motor vehicle and will be subject to the duties and instructions applicable to operators of motor vehicles. Additionally, all bicycle operators are required to abide by all traffic laws the same as vehicle operators. Noncompliance may result in a citation being issued by Security Forces and traffic points may be assessed.

8.2. It is prohibited for bicycle riders to ride while wearing a Walkman, similar headset device, or ear plugs because they may interfere with the operator's ability to hear. All bicycle operators and passengers must wear an approved bicycle helmet IAW AFI 91-207, The U.S. Air Force Traffic Safety Program, paragraph 20. As a minimum, helmets must meet or exceed safety standards established by the American National Standards Institute, the Snell Memorial Foundation or the American Society of Testing and Measurement for Protective Headgear.

8.3. Bicycles used during the hours of darkness will be equipped with a headlamp visible from a distance of 500 feet, a rear red reflector, and side reflector visible from a distance of 600 feet. Holding a flashlight or similar device is unacceptable. Bicycles will be equipped with a bell, horn or other audible device that can be heard at a distance of at least 100 feet. Operators should wear lightly colored clothing.

8.4. No person operating a bicycle shall carry any package, bundle, or article which prevents the rider from keeping one hand on the handlebars at all times.

8.5. Bicycles will not carry more persons than the bicycle was designed to carry. At no time will a passenger be permitted to ride on the handlebars.

8.6. Bicycles will be operated in single file to the extreme right of the roadway and in the same direction of travel as motor vehicles.

9. Traffic Signs and Markings

9.1. Vehicle operators shall obey all traffic control devices unless otherwise directed by Security Forces or other individuals acting in traffic control capacity.

9.2. Notify the base civil engineer service desk if existing traffic control devices need repair. Recommended changes to existing devices should be forwarded to the 436 CES for action, with coordination through 436 AW/SE.

9.3. Military workers and contractors must comply with the Uniform Code of Traffic Control Devices when changing traffic patterns (e.g. closing off roadways, lanes, etc.).

10. Pedestrian Traffic

10.1. Safety Requirements:

10.2. Pedestrians must use sidewalks where provided. Pedestrians walking alongside the roadway will walk in single file facing on-coming traffic.

10.3. Vehicle operators will yield the right-of-way to pedestrians in crosswalks. However, pedestrians who have not yet entered the crosswalk will yield the right-of-way to vehicle traffic and ensure vehicle traffic is clear before stepping from the curb.

10.4. Jogging, running, or walking on the street or shoulder will be done facing traffic on the outside edge of the opposing traffic lanes or shoulders of the road. If running in formation, Section 7, Troop Movements, applies. Runners not running in formation will run in single file, facing against the flow of traffic when vehicle traffic is present. This will contribute to runner safety and not impede the flow of traffic. During the hours of darkness, joggers will wear light colored clothing. Exception: This does not apply to areas along roadways clearly marked for pedestrians/runners.

10.5. It is prohibited for pedestrians to walk or jog on any roadway while wearing a Walkman or similar headset device that impedes hearing. Exception: A Walkman or similar headset device may be used as long as the ear closest to traffic does not have an ear/headset device obstructing hearing.

11. Skateboards, Roller-Skates, Roller-Blades and Other Non-Motorized Modes of Transportation

11.1. No skateboarding, roller-skating, or roller-blading will be allowed on any road, street, or thoroughfare, with the exception of the jogging path along Perimeter Road from the South Gate to Building 1276/1277 during daylight hours. In housing, skating is permitted at the Youth Center basketball court (call for restrictions), Arnold Elementary tennis court without net, the south parking lot when there are no cars present and the basketball court of Welch Elementary, jogging paths, and sidewalks in Family Housing.

11.2. No skating in culverts, storm drains, bus stops, steps, ramps leading to entrances/exits, or shoppette/store areas (i.e., Commissary, Main Exchange, or banks).

11.3. Skating on perimeter road jogging path is prohibited during the hours of darkness.

11.4. Pedestrians have the right-of-way on sidewalks and jogging paths.

11.5. Group skaters must form a single file when approaching or overtaking pedestrians.

11.6. Skaters will skate at a speed safe for road conditions and will not harass the general public.

11.6.1. Skaters are required to wear approved helmets (same guidelines as bicycle riders, para 8.2). It is strongly recommended that all skaters use wrist, elbow, and kneepads.

11.7. Jumping ramps are not authorized along any roadway or sidewalk.

11.8. It is prohibited for persons using skateboards, roller skates, or roller blades to wear a Walkman or similar headsets.

12. Miscellaneous

12.1. No person shall perform vehicle maintenance on any roadway, parking lot, or access road except to perform emergency repairs. On base, major repairs will only be performed at the auto hobby shop. A major repair is any repair taking longer than two hours to complete.

12.2. No person shall operate a motor vehicle unless the vehicle has a valid state vehicle registration plate securely attached to the vehicle. The plate will be clearly visible, legible, and free of foreign material or borders which hinder or obstruct vision of the registration plate.

12.3. It is unlawful to interfere with any Security Forces person while such person is investigating accidents, traffic violations or citing persons for such violations.

12.4. When passing a Security Forces vehicle displaying emergency lights engaged in a roadside traffic stop, vehicle operators will move to the outside lane if possible. As a minimum, all passing vehicles will reduce speed to 20 MPH while passing.

12.5. Vehicles will remain at least 300 feet to the rear of emergency response vehicles.

12.6. Vehicles will not be driven over unprotected fire hoses unless directed by on scene emergency personnel.

12.7. Yielding right of way to emergency vehicles. All vehicle operators must yield the right of way to an emergency vehicle displaying a flashing red or blue light, sounding a siren, bell or horn. As soon as possible, pull over to the right shoulder of the roadway and come to a complete stop until the emergency vehicle or vehicles have passed.

12.8. Speed Contest, Exhibition of Speed or Breaking Traction. No vehicle operator may promote or take part in any race or speed contest between motor vehicles or between single vehicle and any type of timing device; unless such contest is conducted with the written permission of the installation commander. No motor vehicle operator may display an exhibition of speed such as breaking traction, squealing or spinning tires that leave tire marks on the roadway surface.

12.9. Vehicles will not be operated with ice, snow, fogged or excessively dirty windshield, windows, headlights, or tail lights. All glass will be free of obstructions which could restrict the visibility of the operator.

12.10. All snow or ice must be removed from the hood, roof and trunk of vehicles before operation.

12.11. Unattended animal restrictions:

12.11.1. Animals will not be left unattended in the open bed of a truck, unless properly caged.

12.11.2. Animals will not be left unattended in the passenger compartment of a vehicle unless controlled in such a manner that prevents an attack on other animals or persons outside the vehicle. Animals will not be left in vehicles when the temperature rises above 70 degrees Fahrenheit.

12.12. The following vehicle modifications are prohibited:

12.12.1. Flashing or multicolor exterior lights not factory installed.

12.12.2. Paint designs, bumper stickers, flags or any other offensive display. Offensive material is defined as any language or image that is obscene, commonly associated with gangs, extremist, and/or supremacist organizations, or that advocate sexual, racial, ethnic, or religious discrimination language or images. Vehicle operators will be cited and given 72 hours to remove offensive material.

ETHAN C. GRIFFIN, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoDI 6055.4, *Traffic Safety Program,* 20 April 2009

AFI 31-218I, *Motor Vehicle Traffic Supervision*, 22 May 2006

AFMAN 31-201, *Security Forces Administration and Reports,* 28 August 2006

AFMAN 33-363, *Management of Records*, 8 November 2008

Prescribed Forms

There are no prescribed forms in this publication.

Adopted Forms

AF Form 533, *Certificate of Compliance – Private Motor Vehicle Registration*

AF Form 75, *Visitor/Vehicle Pass*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

AF Form 533, *Certificate of Compliance – Private Motor Vehicle Registration*

AF Form 1176, *Authority to Search and Seize*

CVB 1805, *United States District Court Violation Notice*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 2220, *DOD Registered Vehicle*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 1920, *Alcohol Incident Report*

DD Form 2504, *Vehicle Impoundment Notice*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Service

ADAPT—Alcohol/Drug Abuse Prevention Treatment Program

AF—Air Force

AFB—Air Force Base

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFRC—Air Force Reserve Command

AFRIMS—Air Force Records Information Management System

AMC—Air Mobility Command

AMCI—Air Mobility Command Instruction

ANG—Air National Guard

ATV—All Terrain Vehicles

BAC—Blood Alcohol Concentration

BDOC—Base Defense Operations Center

BX—Base Exchange

CC—Commander

CD—Deputy Commander

CDC—Child Development Center

CES—Civil Engineering Squadron

CVB—Central Violations Bureau

DoD—Department of Defense

DSP—Delaware State Police

DUI—Driving Under the Influence

DWI—Driving While Intoxicated

HMMWV—High Mobility Multipurpose Wheeled Vehicle

FH—Family Housing

GMV—Government Motor Vehicle

IAW—In Accordance With

IMC—Industrial Maintenance Complex

IMT—Information Management Tool

JA—Judge Advocate

LMV—Light Motor Vehicle

MPH—Miles Per Hour

MSG—Mission Support Group

NAF – Non-Appropriated Funds

OPR—Office of Primary Responsibility

ORV – Off**-**Road Vehicle

PDA—Personal Digital Assistant

POV—Privately Owned Vehicle

RDS—Records Disposition Schedule

SE— Safety

SFMIS—Security Forces Management Information System

SFS—Security Forces

SRBW—Suspension, Revocation, Barred and Warrant

SUP—Supplement

TBD—To Be Determined

TDY—Temporary Duty

UCMJ—Uniformed Code of Military Justice

UFC—Unified Facilities Criteria

US—United States

USC—United States Code

Attachment 2

DEFINITIONS

Authorized Emergency Vehicle - Fire department, ambulance, Security Forces or other emergency vehicles as designated by proper authority.

Bicycle - Shall include a class of vehicles which are exclusively human powered by means of foot pedals, which the driver normally rides astride, and do not have in excess of three wheels.

Major Vehicle Accident - Any accident to a POV or GMV involving government or private property damage exceeding $10,000 or injuries/death to any person at the accident scene. NOTE: Any injury, regardless of severity, or accidents, which are difficult to explain (i.e. No correlation between damage and accident chain-of-events, arson suspected, fraudulent claim anticipated, etc.), defines the incident as a major accident.

Minor Vehicle Accident - Any accident with non-disabling damage to Government Motor Vehicle (GMV), and/or Privately Owned Vehicle (POV), and/or government property less than $10,000 and in which there are no injuries.

Moped - A pedal bicycle having two tandem wheels, either over 20 inches in diameter, and with helper motor characterized in that the maximum piston displacement is less than 55cc and maximum speed does not exceed 25 mph.

Motorcycle - A motor vehicle designed to travel with no more than three wheels in contact with the ground.

Motor Vehicle/Vehicle - Any means of transportation by a motor powered engine to include mopeds, scooter, all-terrain vehicles, motorcycles, cars, and trucks.

Family Housing (FH) - Pertains to Eagle Heights.

Juvenile - All persons under the age of 18 are defined as juveniles for the purpose of this instruction.

Parked or Parking - The standing of a vehicle, whether occupied or not, in a designated area or in compliance with a police person, sign, or signal.

Recreational Vehicle - Includes every motor vehicle used for temporary human living quarters, not the residence of the owner or occupant, and used for recreational or vacation activities, including motor homes, self-propelled campers and other motor vehicles with permanently attached camper components.

Right of Way - The right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or person.

Roadway - The portion of the highway improved, designed, or ordinarily used for vehicle traffic, exclusive of the berm or shoulder.

Skating – The use of roller-skates, roller blades, skateboards, or scooters.

Traffic Control Device - All signs, signals, markings, and devices used for the purpose of regulating, warning, and guiding traffic. This includes Security Forces and properly designated personnel who are manually directing traffic.

Stop or Stopping - A complete cessation of movement.

Troop Movement - Any group of people traveling in formation on a roadway. This includes military and exercise formations.

Unsafe Act - An act or omission in traffic, which is hazardous.

Figure A2.1. PARKING PLACARD

PARKING PLACARD	
Vehicle Owner's Name:	Squadron:
POC with Keys:	Phone No:
Parking Start Date:	Parking End Date:
Date Registration Expires:	Date Insurance Expires:
Additional Remarks: (1st Sgt Name, etc.)	